

#	Case Name	Tentative Ruling
101		
102	Chao v Air Combat USA, 2022-01258475	Motion to Be Relieved as Counsel of Record – CONTINUED Motion to Be Relieved as Counsel of Record – CONTINUED Suzanne Burke Spencer (“Moving Counsel”), moves to be relieved as counsel of record for Defendants Michael J. Blackstone and Air Combat USA, Inc. (collectively, “Defendants”). “The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1).” (Cal. Rules of Court, rule 3.1362(c).) Moving Counsel states the grounds for the motions are as follows: “Attorneys are required to withdraw from Defendant’s representation by rule 1.16 of the California Rules of Professional Conduct. Permissible grounds for withdrawal also exist under rule 1.16. Attorneys are constrained by their duty of confidentiality and by attorney-client privilege from further expounding upon the reasons for withdrawal.” (ROA 225, 236, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.)

		California Rules of Professional Conduct, Rule 1.16 contains numerous grounds for mandatory and permissible withdrawal. Moving Counsel refers to mandatory and permissible withdrawal without specifying the ground(s) upon which Moving Counsel moves to be relieved. Moving Counsel does not provide any general facts explaining the reasons for the motion, and the Court cannot determine whether adequate grounds exist to grant the motions to be relieved as counsel of record for Defendants. Further, the instant motions to be relieved as counsel of record were set for hearing on May 28, 2026 and June 4, 2026 in in Department C44. (ROA 229, 240.) After the moving papers were served on the client, the case was reassigned to this Department pursuant to a Minute Order dated May 19, 2026, and the motions were continued to June 22, 2026. (ROA 250.) The clerk gave notice of the Minute Order dated May 19, 2026. (ROA 251.) However, there is no indication that Defendants were given notice of the continued hearing date, or of the location of the newly assigned Department. Based on the foregoing, the Court CONTINUES the motions to be relieved as counsel of record to July 13, 2026, at 9:00 a.m. in Department N14. Moving Counsel is ORDERED to file supplemental declarations providing general facts sufficient to show that mandatory and/or permissive withdrawal is appropriate. Said declarations to be filed and served no later than nine (9) courts day before the continued hearing date. Moving Counsel is also ORDERED to immediately serve notice on the clients and on all parties to the action. Moving Counsel to file proof of service of the same no later than nine (9) court days before the continued hearing date.
103	Fullerton v Air Combat USA, 2026-01548989	Motion to Be Relieved as Counsel of Record – CONTINUED